



File No.: EXP202304295

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on July 13, 2023. The complaint is directed against ENTE PUBLICO RADIO TELEVISION CASTILLA-LA MANCHA with NIF S4500020E (hereinafter, RTVCLM). The reasons on which the complaint is based are as follows:

On 04/02/23, the claimant submitted a request for access to public information from RTVCLM in which they literally requested: "Number of disciplinary files and/or infractions, the violations, the sanctions imposed, and the dates of the infringing acts, concerning the employees of the three companies that make up the Public Entity RTVCM-CMMEDIA, for the years 2019, 2020, 2021, and 2022. In application of resolution 264/2022 of the Transparency and Good Governance Council. Please dissociate/anonymize personal data as no nominal data or any identifying data, such as professional specialty, is requested."

RTVCLM considered that this request could affect the rights of third parties, which is why it forwarded the request to the affected parties so that they could make allegations.

The claimant believes that RTVCLM violated data protection regulations by making this transfer, as the document sent to the affected parties indicates the identity of the requester (name and surname) of the information.

On 10/02/23, RTVCLM sent a response to the claimant (apparently as a consequence of a prior complaint made by the claimant), in which they communicated that "Regarding the inclusion of your name, please remember that a name, if not accompanied by more information, is not a personal data. I would also like to point out that the identity of the person making the inquiry may be relevant for the possible affected party."

The claimant states that, when requesting the data under the transparency law, they were informed that: "The data will not be transferred or communicated to third parties, unless there is a legal obligation to do so," and that, however, RTVCLM has disseminated their data without their consent or authorization, and without any legal obligation or authorization for doing so.

Along with the complaint, the respondent submits their request for information to RTVLM, along with its response and subsequent procedures, as well as the exchange of subsequent messages between the parties.

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SECOND: In accordance with the pre-admission mechanism for claims submitted to the AEPD, as provided in Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), which consists of forwarding such claims to the data protection delegates designated by the data controllers or processors, or to them when they have not designated any, and with the purpose indicated in the aforementioned article, on 03/04/2023, the claim was forwarded and the notification from RTVCLM was received, so that it could proceed with its analysis and respond within one month.

THIRD: On 27/04/2023, the Data Protection Delegate of RTVCLM issued the requested response to the AEPD and reaffirmed in its argumentation the necessity of providing the identity of the claimant in the information request procedure, in compliance with the applicable transparency legislation.

FOURTH: On 09/05/2023, the AEPD admitted the claim for processing.

FIFTH: On 23/06/2023, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for the Protection of Data, agreeing to archive the claim. The resolution

was notified to the appellant on July 4, 2023, as evidenced in the file.

SIXTH: On 13/11/2023, the claimant filed a voluntary appeal for reconsideration through the AEPD's Electronic Registry, against the resolution issued in file EXP202304295, in which they expressed their disagreement with the contested resolution, and provided new documentation and new facts, requesting that the processing of the initial claim submitted be continued.

SEVENTH: On 07/11/2023, the appeal filed was sent to RTVCLM in accordance with the provisions of Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for the purpose of formulating allegations and presenting the documents and justifications deemed appropriate, which has been verified by a response letter dated November 14, 2023. In this letter, RTVCLM reaffirms the allegations already presented previously in relation to this case.

EIGHTH: On 27/12/2023, the Director of the Spanish Agency for the Protection of Data resolved to uphold the appeal for reconsideration filed by the claimant against the resolution of this Agency issued on 23/06/2023, by which the archiving of the claim related to RTVCLM was agreed, in order for the processing to continue.

NINTH: On March 19, 2024, the Director of the Spanish Agency for the Protection of Data agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6.1.a) of the GDPR, classified in Article 83.4 of the GDPR.

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TENTH

Once the aforementioned initiation agreement was notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the party being claimed submitted a written statement of allegations on 04/04/24. In summary, it stated that:

RTVCLM reaffirms the various statements already submitted to the AEPD for this case, considering them reproduced. It believes that the Transparency Body has limited itself to managing the request for access to the public information in question, in strict application of Law 19/2013, of December 9, on Transparency, Access to Public Information, and Good Governance (hereinafter, State Transparency Law 19/13).

In general terms, it argues the importance of applying the principle of the presumption of innocence in sanctioning administrative law, by analogy with Criminal Law, and how in this procedure, the AEPD is not respecting this constitutional principle. It also argues the essential nature of the hearing process, also in the procedure for access to public information, to guarantee the rights of third parties concerned, in accordance with current legislation and jurisprudence.

It also states that the right of access to public information is recognized for all persons, as provided in Article 12 of the State Transparency Law 19/13, whereby the decision on access to the requested information must be based and justified in relation to the object of the request, and must not take into account the identity of the requesting person.

It further claims that this universal legitimization would be limited by Article 17.3 of the State Transparency Law 19/13, which provides that the reasons for requesting the information may be taken into account when issuing the corresponding resolution, and by Article 19.3 of the State Transparency Law 19/13, which states that a period will be granted for making allegations if the requested information could affect the rights or interests of duly identified third parties. The communication of the identity of the claimant is not generally required, in application of the principle of minimization provided in Article 5.1.c) of the GDPR.

It argues that the need to communicate to a third party the identifying data of the information requester could be conceived, relying on the conclusions of Opinion 4/2023, from the Transparency and Data

Protection Council of Andalusia, which would consider the communication of the identity of the requester lawful when the lack of knowledge could cause defenselessness in the defense of their affected rights or interests, due to insufficient information to assert their right to present the appropriate allegations regarding the request for access to public information.

As the requester was (...), the allegations conclude that the knowledge of the identity of the requester is relevant in order not to cause defenselessness to third parties within the procedure for the request for access to public information.

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In the opinion of the respondent party, the procedure carried out is thus fully justified, and therefore requests the dismissal of the sanctioning procedure, as no provision of the GDPR has been infringed.

ELEVENTH: In the Resolution Proposal of 08/05/2024, the facts, legal qualification, proposed sanction, and provisional measures from the initiation agreement are maintained in the resolution proposal, as well as a declaration of infringement against RTVCLM of Article 6.1.a) of the GDPR, classified under Article 83.4 of the GDPR, along with the adoption within a period of 6 months of the necessary measures in its procedures to prevent the disclosure of the identity of the applicants, when not protected by a legal provision or the consent of the interested party.

TWELFTH: On 10/05/2024, the AEPD communicated to RTVCLM, with a deadline of 10 days to make new allegations, without RTVCLM having made new allegations to date. In the Resolution Proposal, the allegations of RTVCLM from 04/04/24 regarding the initiation Agreement are evaluated as follows: RTVCLM alleges that the AEPD is not respecting the constitutional principle of the presumption of innocence, without specifying the specific provisions infringed. In the resolution proposal, this allegation is rejected based on Article 24.2 of the Constitution: "Everyone has the right to the ordinary judge predetermined by law, to defense and to the assistance of a lawyer, not to testify against themselves, not to confess guilt, and to the presumption of innocence."

And in Article 53, section 2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), regarding the rights of the interested party in the sanctioning administrative procedure:

"2. In addition to the rights provided for in the previous section, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights:
a) To be notified of the facts attributed to them, of the infringements that such facts may constitute, and of the sanctions that may be imposed on them, as well as of the identity of the instructor, the competent authority to impose the sanction, and the norm that attributes such competence.
b) To the presumption of non-existence of administrative responsibility until proven otherwise."

The AEPD has informed RTVCLM of the facts attributed to them, respecting the legal principles that guarantee a fair procedure, especially the hearing process at various stages of the procedure, allowing RTVCLM to carry out allegations and present the relevant evidence for their defense.

The AEPD thus complies with the procedural principles of sanctioning administrative law, in accordance with Article 24.2 of the Constitution and letter a) of section 2 of Article 53.2 of the LPACAP. The existence of valid evidence of all the essential elements of the administrative infringement, from which the facts can be inferred reasonably and rationally, at

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Just as the authorship of the "accused or indicted" is established by the exclusively documentary nature of the sanctioning procedure and based on administrative acts, to which the presumption of validity provided for in Article 39.1 of the LPACAP applies: "1. The acts of the Public Administrations subject to Administrative Law shall be presumed valid and shall produce effects from the date they are

issued, unless otherwise provided therein."

The facts are also substantiated by RTVCLM's acknowledgment of its authorship: RTVCLM has provided the identifying data of the claimant to third parties whose data could be affected by their request for access to public information. The discrepancy among the participants in the procedure refers exclusively to the applicable norm in the case.

For the reasons stated above, there is no evidence of a violation of the presumption of innocence, as there are undoubtedly valid documentary proofs in law and allegations from the participants that confirm the authorship of the facts by the claimed party.

The controversial issue in this sanctioning file is whether the applicable legislation in the case allows RTVCLM to reveal the identity of the requester during the hearing process for interested third parties within the public information access procedure.

RTVCLM invokes Articles 12, 17.3, and 19.3 of the State Transparency Law 19/13, despite none of them allowing for the revelation of the identity of the information requester. To support this, it refers to Opinion 4/2023 from the Transparency and Data Protection Council of Andalusia: "The communication of the identity of the information requester could be considered lawful when the lack of knowledge could cause defenselessness in the defense of their affected rights or interests, due to insufficient information to assert their right to present the appropriate allegations regarding the request for access to public information."

As the requester was (...), RTVCLM concludes in its allegations that knowledge of the requester's identity is relevant in order not to cause defenselessness to third parties, thus fully justifying the procedure carried out, requesting the filing of the sanctioning procedure, as no provision of the GDPR has been infringed.

The AEPD considers, for its part, that the applicable norm in the case by territorial and material competence is Law 4/2016, on Transparency of Castilla-La Mancha, since RTVCLM is a public entity belonging to the Community of Castilla-La Mancha; its Article 32 establishes in paragraphs 3 and 4 the following (the relevant part is underlined):

3. If the request for public information may affect the rights or interests of third parties, in accordance with the provisions of this law, if the possible affected parties are identified or easily identifiable, they must be notified of the request, and they have a period of fifteen days to present allegations, suspending the deadline for resolution until the receipt of the allegations or the expiration of the maximum submission period. The notification referred to in the previous paragraph shall not be necessary when the requester proves the consent of the affected third parties."

"4. In the case provided for in the previous number, the requester will be informed of the transfer of their request, as well as the suspension of the deadline for issuing a resolution. Regarding third parties, the transfer of the request must indicate its reasons, but it will not be mandatory to reveal the identity of the requester.

The AEPD concludes that RTVCLM fails to apply its own specific norm for the case, which does not consider it mandatory to reveal the identity of the requester to other possible affected parties within the public information access request procedure. Not forgetting the emphasis of Article 12 of the State Transparency Law 19/13, invoked, that the decision on access to information should not take into account the identity of the requesting person, but should be applied and justified in relation to the object of the request.

From the actions carried out in this procedure and the documentation in the file, the following have been established:

PROVEN FACTS

FIRST: On 04/02/23, the claiming party submitted a request for access to public information to RTVCLM, asking for the number of disciplinary files and/or infractions, the violations, the sanctions imposed, and the dates of the infringing commissions, concerning the employees of the three companies that make up the Public Entity RTVCM-CMMEDIA, for the years 2019, 2020, 2021, and 2022. In their request, they clarified that they did not want any identifying personal data, such as professional specialty, and that they only requested disassociated or anonymized data.

SECOND: RTVCLM communicated via email on 09/02/2023 the name and surname of the claiming

party to third parties, within the public information access procedure. On the same date, RTVCLM sent an email to the claiming party, informing them about this.

THIRD: On 10/02/23, RTVCLM sent a response to the claiming party in which they communicated that "Regarding the inclusion of your name, please remember that a name, if not accompanied by more information, is not a personal data. I would also like to point out that the identity of the person making the inquiry may be relevant for the possible affected party."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each

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The control authority and according to the provisions of Articles 47, 48.1, 64.2, and 68.1 of the Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In Article 4.1) of the GDPR, personal data is defined as:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person [...];"

Therefore, names and surnames clearly qualify as personal data, contrary to what RTVCLM has claimed.

In Article 4.2) of the GDPR, processing is defined as:

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;"

The disclosure of the identity of the information requester to other parties involved in the procedure in question constitutes the processing of personal data through communication by transmission.

In Article 4.7) of the GDPR, the data controller is defined as:

"7) 'data controller' or 'controller': the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be laid down by the law of the Union or of the Member States;"

RTVCLM is the public entity responsible (legal person, service, or body) for the processing (communication by transmission) of the personal data (name and surname) of the complainant.

III

Unfulfilled Obligation

For its part, Article 6 of the GDPR establishes the following regarding the lawfulness of processing:

“1. Processing shall be lawful only if and to the extent that at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

Article 6 in its paragraphs 2 and 3 of the GDPR allows Member States to maintain or introduce more specific provisions to adapt the application of the rules of this Regulation with regard to processing under paragraph 1, letters c) and e), setting out more precise specific requirements for processing and other measures to ensure lawful and fair processing, including other specific situations of processing under Chapter IX.

The complainant states that, when requesting the data under the transparency law, they were informed that: “The data will not be transferred or communicated to third parties, unless there is a legal obligation to do so.”

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RTVCLM has communicated personal data of the claimant to third parties, relying on Article 25 of Law 4/2016, of December 15, on Transparency and Good Governance of Castilla-La Mancha, which establishes:

“Article 25. Limits to the right of access to public information. The regime regarding the limits of access to public information and the principles of interpretation thereof are those provided in Articles 14 and 15 of Law 19/2013, of December 9, on transparency, access to public information, and good governance, without prejudice to facilitating, whenever possible, partial access, omitting the part affected by the limitation, indicating, in this case, to the requester the part of the information omitted.”

For its part, Article 15, second paragraph of section one of Law 19/2013, of December 9, on transparency, access to public information, and good governance - basic state regulation - also provides:

1. If the information includes personal data referring to racial origin, health, or sexual life, includes genetic or biometric data, or contains data relating to the commission of criminal or administrative offenses that do not involve public reprimand of the offender, access may only be authorized if there is express consent from the affected party or if it is covered by a norm with the rank of law. (...)

This provision establishes the prior and express consent of the interested parties, in the event that the requested information contained data relating to the commission of administrative offenses, as is the case; but it also establishes the following exception in paragraph 4 of this same article:

“4. The provisions of the previous sections shall not apply if access is made after dissociating personal data in such a way as to prevent the identification of the affected individuals.”

When the claimant expressly requests the dissociation and/or anonymization of personal data, omitting any identifying data, RTVCLM could have provided the information requested by the claimant without disclosing their name to the other interested parties, as the consent of the latter would not be

necessary.

If this exception does not apply, because the possible affected parties are identified or easily identifiable, Article 32, paragraph 3 of Law 4/2016 (Transparency Law of the Community of Castilla-La Mancha) provides for the right to present allegations to the possible affected parties by the request, as indicated below:

“3. If the request for public information may affect the rights or interests of third parties, in accordance with the provisions of this law, if the possible affected parties are identified or easily identifiable, they must be notified of the request, and they have a period of fifteen days to present allegations, suspending the deadline for resolution until the receipt of the allegations or the expiration of the maximum presentation period. The notification referred to in the previous paragraph shall not be necessary when the requester proves the consent of the affected third parties.”

But even in this case, the following paragraph of the same provision provides that it shall not be mandatory to reveal the identity of the requester. Article 32, paragraph 4 of Law 4/2016 states:

“4. In the case provided for in the previous number, the requester shall be informed of the transfer of their request, as well as the suspension of the deadline for issuing a resolution. Regarding third parties, the transfer of the request must indicate its reasons, but it shall not be mandatory to reveal the identity of the requester.”

Therefore, the applicable state and regional transparency laws regarding the procedure for requesting access to public information do not justify or authorize RTVCLM to disclose the identity of the requester to other possible affected parties, so the transfer of data made cannot be justified by compliance with a legal obligation.

As a consequence of the explanation provided above, it is confirmed that RTVCLM has revealed the identity of the claimant without their consent, thus violating Article 6.1.a) of the GDPR, as none of the other bases for lawful processing provided in Article 6 of the GDPR apply.

III

Classification and qualification of the infringement

Article 6.1.a) of the GDPR

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that RTVCLM would have committed a breach of the principle of lawfulness of data.

The communication by RTVCLM of personal data (name and surname) of the claimant to third parties, in a request for access to public information, is not based on compliance with a legal obligation applicable to the data controller as provided in section 6.1.c) as claimed by RTVCLM, which means that the processing of their personal data would have taken place without the consent of the interested party.

For this reason, the known facts could constitute an infringement of Article 6.1.a) of the GDPR attributable to RTVCLM, classified in Article 83.5.a) of the GDPR, according to which the following violations constitute an infringement:

“a) The basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9.”

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72.a of the LOPDGDD, which qualifies the following conduct as very serious:

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“b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

IV

Proposal for Sanction

Article 83 “General Conditions for the Imposition of Administrative Fines” of the GDPR in its paragraph

7 establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Regime Applicable to Certain Categories of Controllers or Processors” of the LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which they are responsible or act as processors:

d) Public bodies and entities of public law linked to or dependent on the Public Administrations.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures to be taken to cease the conduct or to correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it is hierarchically dependent, where appropriate, and to the affected parties who had the status of interested parties, where appropriate.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order publication in the Official State Gazette or the corresponding regional gazette.

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4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities.”

Therefore, upon confirming the aforementioned infringement of Article 6.1.a) of the GDPR, it is appropriate to issue a resolution declaring the infringement.

V

Adoption of Measures

Once the infringement is declared, the responsible party must proceed to adopt appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

VI

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the PUBLIC ENTITY RADIO TELEVISION CASTILLA-LA MANCHA, with NIF S4500020E, has infringed the provisions of Article 6.1.a), an infringement classified in Article 83.5 of the GDPR.

SECOND: TO ORDER the PUBLIC ENTITY RADIO TELEVISION CASTILLA-LA MANCHA, with NIF S4500020E, that pursuant to Article 58.2.d) of the GDPR, within 6 months from the date this resolution becomes final and enforceable, to demonstrate that it has taken the necessary measures in its procedures to prevent the disclosure of the identity of the applicants, when not covered by any of the legitimizing bases of Article 6.1 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as

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infringement in its article 83.5 and 83.6, which may motivate such conduct to initiate an additional sanctioning administrative procedure.

THIRD: NOTIFY this resolution to the PUBLIC ENTITY RADIO TELEVISION CASTILLA-LA MANCHA

FOURTH: COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of article 77.5 of the LOPDGDD.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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